

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: November 17, 2023

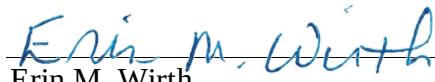
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ENTERING PROTECTIVE ORDER

On November 16, 2023, Respondent filed a consent motion requesting entry of a protective order and attached the proposed confidentiality stipulation and protective order. The motion states that it is filed with the consent of Complainant; the parties have agreed to the terms of the protective order; and it will “enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1.

The initial order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5. The proposed confidentiality stipulation and protective order is reasonable, however, the parties should note that after the initial decision is issued, the undersigned has no authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the confidentiality stipulation and protective order. Accordingly, the consent motion is **GRANTED**, and it is hereby **ORDERED** that the confidentiality stipulation and protective order be entered as an order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge